

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	13-07-2026 19:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	13-07-2026 19:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Finance
विभाग का नाम/Department Name	Department Of Revenue
संगठन का नाम/Organisation Name	Central Board Of Direct Taxes (cbdt)
कार्यालय का नाम/Office Name	Ccit Visakhapatnam
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :vizag.addlcit.hq.ccit@incometax.gov.in Buyer Email id: ddo1264.cbdtc.ap@gembuyer.in
वस्तु श्रेणी /Item Category	Cleaning, Sanitation and Disinfection Service - Outcome Based - Office/Commercial/Institutions/Residential; General Cleaning (Sweeping, Mopping, dusting); Indoor
अनुबंध अवधि /Contract Period	1 Year(s)
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	10 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	3 Year (s)
इसी तरह की सेवाओं का पिछला आवश्यक अनुभव है/Past Experience of Similar Services required	Yes
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover	Yes Complete
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Bidder Turnover,Certificate (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	1
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
अनुमानित निविदा मूल्य (सभी करों सहित) भारतीय रुपये में / Estimated Bid Value in INR (Inclusive of all taxes)	1803207
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मूल्य दर्शाने वाला वित्तीय दस्तावेज ब्रेकअप आवश्यक है / Financial Document Indicating Price Breakup Required	Yes
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	10000

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	3.00

ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).

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(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज प्रस्तुत करने हैं। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

Income Tax Officer(H.Qrs)

CCIT Visakhapatnam, Department of Revenue, Central Board of Direct Taxes (CBDT), Ministry of Finance
(Imtiaz Uz Zama Shaik)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई अनुपालन/MII Compliance

एमआईआई अनुपालन/MII Compliance	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.

2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.

3. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for

Relaxation.

4. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.

5. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

6. Years of Past Experience required: The bidder must have experience for number of years as indicated above in bid document (ending month of March prior to the bid opening) of providing similar type of services to any Central / State Govt Organization / PSU. Copies of relevant contracts / orders to be uploaded along with bid in support of having provided services during each of the Financial year.

7. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

8. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

9. Past Experience of Similar Services: The bidder must have successfully executed/completed similar Services over the last three years i.e. the current financial year and the last three financial years(ending month of March prior to the bid opening): -

1. Three similar completed services costing not less than the amount equal to 40% (forty percent) of the estimated cost; or
2. Two similar completed services costing not less than the amount equal to 50% (fifty percent) of the estimated cost; or
3. One similar completed service costing not less than the amount equal to 80% (eighty percent) of the estimated cost.

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

Geographical presence: Registered Office or one of the Branch Offices at X locations The place of business of the bidder should be Visakhapatnam only

Scope of Work for the Service:[1783083052.pdf](#)

Cleaning, Sanitation And Disinfection Service - Outcome Based - Office/Commercial/Institutions/Residential; General Cleaning (Sweeping, Mopping, Dusting); Indoor (2604)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Type of Space	Office/Commercial/Institutions/Residential
Nature of Service	General Cleaning (Sweeping, Mopping, dusting)
Type of Area	Indoor
Area Inclusions	Cabin/Work Stations area/OPD/Conference halls
Floor Type	Normal Stone/Ceramic tile/Cemented Floor
Type of Cycle	Daily
एडऑन /Addon(s)	

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

परेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	संसाधनों की मात्रा / Area in Sq. Metre	अतिरिक्त आवश्यकता /Additional Requirement
1	Imtiaz Uz Zama Shaik	530020,2nd Floor, Aayakar Bhawan, Dabagardens, Visakhapatnam	2604	- Frequency in each cycle : 2 - Number of working days in a month : 26 - Number of cycles during Contract Period : 312

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE 50% : The buyer can increase or decrease the contract quantity or contract duration up to 50 percent at the time of issue of the contract. However, once the contract is issued, the contract quantity or contract duration can only be increased up to 50 percent. Bidders are bound to accept the revised quantity or duration.

For lumpsum-based service contracts, the buyer may increase the scope of work and contract value up to 50 percent with the consent of the service provider

2. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

3. Payment

PAYMENT OF SALARIES AND WAGES: Service Provider is required to pay Salaries / wages of contracted staff deployed at buyer location first i.e. on their own and then claim payment from Buyer alongwith all statutory documents like, PF, ESIC etc. as well as the bank statement of payment done to staff.

4. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

The approximate area for which housekeeping is required is given as under:

Area to be covered:

S. No	Name of the Office premises	Location	Total Area in Sq.ft (Approx)	Total Area in Sq.Mtr (approx)	Minimum unskilled manpower required
1	5 th Floor LIC Building	Office of the CIT(DR), ITAT, Visakhapatnam, 5 th Floor, LIC building, Jeevan Marg Road, Visakhapatnam	1130	104.98	1
2	Infinity Towers (Cellar+Ground+4 upper floors + terrace)	Infinity Towers, Sankaram Road, Santhipuram, Visakhapatnam	26902	2499.27	5
		Total	28032	2604.25	6

Kindly note that the service provider has to provide 06 unskilled manpower compliance to the wages prescribed by the Chief Labour Commissioner(C), New Delhi for an amount of Rs.18,03,207/- which has been calculated as under:

	Basic Pay	PF @ 13% Ceiling limit for above 15000/- is 75/- per day	ESI@3.25%	Total	GST	service charge @ 3.85%	Total including GST
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For 01 per son nel per day	693	75	22.52	790.52	142.29	30.44	963.25
For 01 per son nel for one mo nth(26 day s)	18018	1950	585.59	20553.59	3699.65	791.31	25044.55
For 06 per son nel for one mo nth(26 day s)	108108	11700	3513.51	123321.51	22197.87	4747.88	150267.26
For 06 per son nel for one yea r	1297296	140400	42162.12	1479858.1	266374.5	56974.54	<u>18,03,207</u>

DETAILS OF THE WORK AND TERMS & CONDITIONS

- a. Daily sweeping and wet mopping of the entire area including the area in front of the Lift in all floors.

- b. Furniture like tables, chairs, visitors chairs, sofas, almirahs etc., and all the electronic gadgets like computers, telephones, fax machines photo copier machine etc., have to be dust free and dust removal has to be done daily. The doors, windows, partitions including the particleboard, glass and aluminum channels in the entire office should be cleaned daily.
- c. Deep cleaning of the toilets including WCs and Urinals with attached water and washbasins by using disinfecting materials like phenyl, harpic, vim, surf etc., thrice a day and more often, if needed and also cleaning of all sanitary fittings, tiles and mirrors on the walls in the toilets.
- d. Vacuum cleaning the systems room and all computers in the office and sofa sets twice a week.
- e. Removal of blockages and clogging in the washbasins and other sanitary fittings in the toilets for smooth outflow of wastewater.
- f. Collect all the sweepings, garbage and wastes and transport/dispose of the same to the nearest pit.
- g. Maintenance and upkeep of the entire office premises.
- h. Artificial plants, door mats and carpets are to be cleaned daily. Natural Plants are to be watered daily.
- i. All name boards, wall panels paintings etc., should be wiped off dirt daily. All brass boards have to be polished with brass polish.
- j. Care should be taken, that the gadgets are not to be tampered during the cleaning operations.

WEEKLY SERVICES (Saturdays)

- a. Removal of cobwebs in the corridors and lavatories.
- b. Removal of dust accumulated on the walls, windows planes and ventilators in the toilets.
- c. Thorough washing, rubbing and cleaning of corridors using scrubber machine.

II. TERMS AND CONDITIONS:

1. The persons employed should work on all days except Sundays and Natio

nal holidays.

2. The working hours will be as directed by this office.
3. The personnel deployed should be well experienced and trained adequately and of sound health. They should be well behaved and well mannered. They should be provided with uniforms and identity cards prominently displayed. They should have knowledge of local language and preferably English also.
4. If a particular person is absent on any day another person should be deployed in his/her place.
5. The personnel should attend to work punctually and complete the cleaning work of the entire office premises before specified time directed by this office daily. The personnel will perform all the duties assigned to the contractor and specified by the Department from time to time.
6. The personnel will report to the Officer-in charge assigned by the Department i.e. PRO.
7. The contractor should deploy one full time Supervisor with mobile phone who shall report to the PRO daily.
8. In case of emergency and residual situations the contractor has to make the personnel available to cater for emergency services & urgent works entrusted by this office as and when need arises.
9. The contractor should pay to their personnel a minimum wage at the prevailing rate as fixed under Minimum Wages Act prescribed by O/o The Chief Labour Commissioner (Central) any breach of this condition will be liable for termination of the contract and the same would be dealt with accordingly. Beside, ESI and PF per head at the current rate should be paid by the contractor every month as per the existing rules and copies of paid cash challans should be submitted every month to this office.
10. The contractor is responsible for payment of monthly salary including leave salary, bonus, gratuity etc., to the personnel as applicable to them.
11. The contractor should ensure that there is no scope for any grievance from the personnel on delayed payment of wages. The employees engaged by the Housekeeping Agency will be in the employment of the Housekeeping Agency only and not of Income Tax Department.
12. Mode of payment will be monthly and payments to the Housekeeping Contractor will be through Account Payee Cheques only. Tax shall be deducted

d at source as per the prevailing Income Tax Act from the monthly bills.

13. The Contractor shall indemnify and shall keep this office indemnified against Acts of omission or negligence, dishonesty or misconduct of the men/women engaged for the work and this office shall not be liable to pay any damages or compensation to such person or to third party. All damages caused by the housekeeping personnel shall be charged to the contractor and recovered from its dues/bills.
14. This office reserves the right to terminate the services of the Housekeeping contractor at anytime without giving any notice whatsoever.
15. All existing statutory regulations both State & Central Governments shall be adhered to and complied with by the Housekeeping contractor and all records maintained thereof should be available for scrutiny by this office. The Housekeeping Contractor shall strictly comply with the terms and conditions of the agreement, which will be executed with the successful contractor. Failure by the contractor to comply with such statutory requirements and / or the terms of the agreement during the period of agreement of deficiency in services shall result in termination of the contact.
16. The contract will be in force **for a period of one year as specified in contract order.** This office reserves the right to extend the duration of the contact for a further period subject to satisfactory performance and on mutually agreed terms and conditions.
17. The Service provider should be used branded materials for Bathroom cleaner, for Hard surface & Taps cleaner, for Glass cleaner and for Floor cleaner for the house keeping services.
18. No escalation of price whatsoever would be allowed during the pendency/currency of the contract except in the increase in minimum wages, of there has been increase in wages by the Statutory authority empowered to do so. The increase has to be intimated immediately to this office by the Service Provider.
19. If at any time during currency of JOB, the SCOPE OF WORK for which this job has been awarded is reduced/abandoned, or if the number of persons employed by the supplier is reduced from the stipulated number for any period, the payment/value of this job order shall be reduced on pro-rata basis by this office and would be binding on the Contractor (Service Provider).
20. The contractor (Service Provider) shall submit the bill for every month by

the 1st day of next month along with the statement showing the area cleaned, mopped etc., certified by the respective Administrative Officers/Caretakers/PRO. No interim bills will be entertained. Payment will be made through Cheque within a month from the date of submission of bill provided there is no dispute in respect of rates, quantity and quality of work and on the basis of endorsement made by the respective Administrative Officers. The payment is subject to TDS applicable under the Income Tax Act, 1961.

21. Any dispute arising out of this agreement or that which may arise in future, shall be resolved by taking recourse to mutual settlement, arbitration/conciliation clauses formulated by International Centre of Alternative Dispute Resolution (ICADR), failing which the dispute will be subject to Visakhapatnam jurisdiction only.
22. The party of the first part reserves the right for termination of the contract at any time by giving one month's written notice, if the services are found unsatisfactory and also has the right to award the contract to any other agency at the cost, risk and responsibilities of the Service Provider and excess expenditure incurred on account of this will be recovered by the Chief Commissioner of Income Tax, Visakhapatnam from pending bills or by raising a separate claim against the Service Provider.
23. This Order shall hold good till specified as contract period, unless revoked at any point of time on any administrative requirement/grounds & may be extended for further period as per the functional requirements of this Office subject to the satisfactory performance of the Contractor & Service Provider.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.

5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and

[Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms

of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---